

SPOTO CANCELLATION & REFUND POLICY (India – including Karnataka)

Effective date: 1 November 2025

1. Purpose & scope

1.1. This Cancellation & Refund Policy (“Policy”) explains Spoto’s rules and procedures for cancellations and refunds of bookings made through the Spoto platform in India (including bookings for properties in Karnataka). It applies to all Guests and Hosts who use Spoto.

1.2. This Policy complements and is subject to Spoto’s Terms & Conditions and applicable laws and regulations in India and Karnataka, including the Consumer Protection (E-Commerce) Rules, 2020, RBI guidance that governs payment reversals/refunds and related regulatory requirements. [High Court of Tripura+1](#)

2. Definitions

- **Guest / User:** the person who makes a booking on Spoto.
- **Host:** the owner/manager of a listed property on Spoto.
- **Booking confirmation:** a reservation that has been accepted by the Host and confirmed by Spoto.
- **Refund initiation:** the moment Spoto (or the Host via Spoto) notifies the payment processor to return funds to the Guest.
- **Refund completion / credit:** when funds appear in the Guest’s bank account, card account, or UPI app – this timing depends on the payment instrument and the Guest’s bank/payment provider.

3. Policy principles (legal & practical)

3.1. **Default rule (non-cancellable / non-refundable):** Unless otherwise specified in a specific listing or promotional term, bookings made through Spoto are **non-cancellable and non-refundable** by Guests. Spoto publishes clear “non-refundable” language at the time of booking.

3.2. **Exceptions required by law or platform integrity:** Notwithstanding the default rule, Spoto will issue refunds and take necessary actions in cases required by law, regulatorily mandated processes, or where fairness and consumer protection principles apply – for example: Host declines/cancels a booking, overbooking, material misrepresentation of the listing, fraud, or when ordered by a competent authority. Spoto will comply with applicable Consumer Protection (E-Commerce) Rules and RBI/payment rules in such cases. [High Court of Tripura+1](#)

4. When a refund will be issued

Spoto will initiate refunds (or offer alternatives) in the following circumstances:

4.1. Host declines a booking request prior to confirmation

- **If a Host declines a Guest’s booking request prior to confirmation, Spoto will initiate a full refund to the Guest for any amount paid. Spoto will normally initiate the refund**

instruction within 48 hours of the Host's decline; actual credit to the Guest depends on the payment method/provider (see Section 7). (Operational note: you may advertise "refunds will be initiated within 48 hours" – credit timing varies by bank/PG.)

4.2. Host cancels a confirmed booking (including overbooking)

- If a Host cancels a confirmed booking for any reason (including overbooking, failure to provide access, or material misrepresentation), Spoto will either:
 - a) Offer the Guest a full refund, or
 - b) Offer an alternative comparable stay (same dates or as agreed by Guest).
- If the Guest accepts a refund, Spoto will initiate refund instruction promptly (see Section 7 for timelines). Where the Host is the initiating party and agrees to the refund, Spoto will process the refund after Host confirmation. Where Spoto cancels (for fraud, safety or platform reasons) Spoto will process refunds without delay.

4.3. Material misrepresentation or fraud

- If a listing is materially different from its description (e.g., essential amenities absent, listing fraudulent) or if a booking is the subject of verified fraud, Spoto will take corrective action and, where appropriate, issue a refund and/or alternative accommodation.

4.4. Force majeure / government restrictions

- Where a booking cannot be honoured due to force majeure (natural disaster, government travel restriction, public health order) Spoto will evaluate available remedies (refund, credit, rebooking) case-by-case. Spoto will follow any regulatory guidance in force at the time.

4.5. Guest cancellations requested to Host

- Guests may request cancellations with the Host, but Spoto does not provide refunds for guest-initiated cancellations except where the Host expressly agrees to refund. If a Host agrees to refund a guest-initiated cancellation, the Host must provide written confirmation to Spoto; Spoto will then initiate refund instruction as directed by the Host and subject to the refund process and timelines set out herein.

4.6. Legal orders / consumer complaints

- If a statutory authority, consumer forum or court orders a refund, Spoto will comply and effect payment as ordered.

5. Cancellation charges & service fees

5.1. Service/administrative fees: Spoto may retain non-refundable service fees or processing fees only where these fees were disclosed at the time of booking. Any fee or deduction will be clearly disclosed to the Guest at the time of purchase.

5.2. No discriminatory cancellation fees: Spoto's practices comply with the Consumer Protection (E-Commerce) Rules which require transparency on charges and prohibit unfair

unilateral terms; Spoto will not impose cancellation charges that are not clearly disclosed in the listing or that violate applicable law.

6. How refunds are processed (operational steps)

6.1. Refund initiation: Once a refund is approved (per Sections 4 or 5), Spoto or the Host will instruct the payment processor to reverse or refund the transaction. Spoto aims to **initiate refund instructions within 48 hours** for Host declines/cancellations; in other cases Spoto will initiate refund instruction “promptly” after verification and approval. (See Section 7 for expected credit timelines.)

6.2. Payment instrument dependency: Refunds will be credited to the original payment instrument wherever reasonably possible (e.g., the same card, UPI ID, or bank account used for payment). If original payment instrument is unavailable, Spoto will offer an alternative refund method (e.g., UPI, bank transfer) with Guest consent.

6.3. Partial refunds & adjustments: Where a partial refund is agreed (e.g., partial stay, Host accepts partial responsibility), Spoto will process the partial refund in line with the agreed amount and disclose any retained fees at the time of settlement.

6.4. Communication: Guests will receive an email and/or in-app notification when Spoto initiates the refund instruction. Refund communications will include the refund amount, refund reference number, initiation date, and estimated timing for credit to the Guest’s account.

7. Expected refund timelines & payment provider notes

7.1. Initiation vs credit: *Initiation* of a refund (Spoto instructs the payment processor) is a separate event from the *credit* appearing in the Guest’s account. The following are typical timelines but final credit timing is controlled by banks/payment networks:

- **UPI refunds: often credited within 24–72 hours once initiated (varies by PSP/Bank).**
- **Card refunds (debit/credit): may take 2–14 business days to reflect in the Guest’s account depending on the card issuer, billing cycle, and processor routing. A refund posted after the Guest’s card statement is generated may reduce the outstanding balance but may not appear as a cash credit until the next statement/settlement. Guests should check with their card issuer for exact posting rules.**
- **Bank transfers / NEFT/RTGS: typically 1–3 business days after initiation.**

7.2. RBI / auto-reversal & failed transactions: Some RBI guidance sets mandatory timelines for auto-reversal of failed transactions and may prescribe compensation for delayed reversals in certain scenarios. Spoto and its payment partners comply with applicable RBI timelines and guidance. Compensation rules for transaction failures vary by instrument and scenario. [Reserve Bank of India+1](#)

7.3. Processing delays: Refunds may take longer where verification is required, where a dispute/chargeback is raised, or where banks/payment processors impose additional checks. Spoto will keep Guests informed of any material delays and the reasons where legally permissible.

8. Overbooking & relocation

8.1. If the Host is unable to provide the booked accommodation due to double-booking, closure, or similar reasons, Spoto will:

- a) Offer the Guest a **full refund**, or
- b) Offer a **comparable alternative stay** (at no additional cost if offered by Spoto/Host), or
- c) Provide other remedies (e.g., credits or accommodation upgrades) as agreed with the Guest.

8.2. In all overbooking events, Spoto will prioritize prompt communication, accommodation alternatives, and refunds as appropriate.

9. Chargebacks, disputes, and contested refunds

9.1. Guests may have the right to dispute a transaction through their card issuer (chargeback) or to approach consumer forums. Chargeback processes are handled by the Guest's issuing bank and may have different timelines and outcomes than merchant refunds. Spoto may provide documentation to banks during chargeback investigations.

9.2. Spoto reserves the right to withhold or delay refunds when there is a reasonable suspicion of fraud, identity theft, or breach of Spoto's rules, pending investigation. Spoto will act promptly and fairly in such investigations.

10. Force majeure & statutory compliance

10.1. Where bookings are affected by force majeure (natural disasters, travel restrictions, government orders), Spoto will act reasonably and in good faith to offer refunds, credits, or rebooking options consistent with applicable law and regulatory guidance.

10.2. Where Karnataka state rules or tourism operational guidelines (or national regulation) set additional requirements for refunds or consumer handling for properties in Karnataka, Spoto will comply with those requirements in addition to national law. (See Karnataka operational guidance for tourism service providers for applicable operational expectations.)

11. Rights of Guests under Consumer Protection and enforcement routes

11.1. The Consumer Protection (E-Commerce) Rules and general consumer laws in India provide remedies to consumers for unfair trade practices, misrepresentation, or deficient services. When a Guest believes they have not received services as promised, they may:

- a) Raise the complaint with Spoto via the platform (support channel);
- b) If unsatisfied, escalate to the Grievance Officer (see contact below); and
- c) Pursue remedies at consumer fora (district/state/National Consumer Disputes Redressal Commission) or other statutorily prescribed routes. Spoto will cooperate with consumer fora and regulatory bodies as required by law

12. Communications & timing

12.1. All cancellation and refund communications will be sent via the contact method on file for the Guest (email and/or in-app notification and SMS where available). If a Host elects to refund directly, Host must confirm refund instructions in writing to Spoto to enable Spoto to

process the refund.

12.2. Spoto will keep transaction records and refund logs for audit and regulatory compliance for the retention period prescribed in its Privacy Policy and by applicable law.

13. Disclosure & transparency

13.1. Spoto will display the cancellation/refund status for each booking in the Guest's booking details page and provide clear instructions and policies on the booking page before purchase. Any listing that offers flexible cancellation, free cancellation within a window, or bespoke refund rules must clearly display those terms at the time of booking.

13.2. Any administrative or service fees retained on refunds must be disclosed at the time of purchase.

14. Limitations & indemnity

14.1. Spoto's liability for refunds is limited to the refund amount actually paid by the Guest for the booking (excluding any consequential losses). Spoto shall not be liable for delays in crediting refunds imposed by banks/PSPs or for losses arising from Guest's failure to provide correct payment/receiving information.

14.2. Guests and Hosts must indemnify Spoto against any claims arising out of false/misleading refund requests, fraud, or failure to comply with this Policy.

15. Contact & grievance

For refund/cancellation queries and grievances, contact Spoto support via the platform or:

- Email: gigstrykertainment@gmail.com or aman@gigstrykertainment.com
- Registered Office: 5th Floor, Tower A, INNOV8 MANTRI COMMERCIO, Survey No: 51/3, 51/4, 51/2 & 39/5, Devara Beesana Halli, Bengaluru – 560103

If you are not satisfied with the resolution, you may escalate to the relevant consumer forum or regulatory authority as per the applicable law.

16. Review & changes

Spoto may amend this Policy from time to time to reflect legal/regulatory changes or business needs. Material changes will be posted on the Platform with an updated effective date and notified to registered users as appropriate.

17. Key legal & operational references

- Consumer Protection (E-Commerce) Rules, 2020 (applicable rules on refunds, transparency and duties of e-commerce entities)
- RBI guidance on transaction reversals and payment processing timelines (relevant to refund settlement/auto-reversal). [Reserve Bank of India+1](#)
- Karnataka Tourism operational guidance (useful practical guidance for tourism service providers operating in Karnataka). [Karnataka Tourism](#)

Practical suggestions (implementation notes for your operations team)

- **Refund workflow:** Build a clear internal workflow so refunds are *initiated* within 48 hours for Host declines/cancels; document Host confirmations for Host-initiated refunds.
- **Payment reconciliation:** Make sure your PSP & accounting record the initiation date and the reference id for each refund. Display an estimated credit-by date to customers and clarify a range (e.g., 2–14 business days) rather than promising absolute times.
- **Disclosures:** Add explicit “non-refundable” language on all applicable listings and in checkout flows; for any listing offering flexible cancellation, highlight the precise window and fees.
- **Legal review:** Have local counsel review this draft against the latest DPDP / consumer law developments and Karnataka-specific regulations before publishing.